

What Other Countries Did

Post 9/11, the world has enacted stringent laws to fight terror

USA Patriot Act, 2001: Gives federal officials authority to search telephone, e-mail communications, medical, financial and other records; eases restrictions on foreign intelligence gathering within the US; grants powers to regulate financial transactions, particularly those involving foreign individuals and entities.

UK Anti-Terrorism, Crime and Security Act, 2001: It allows for restrictions on the possession of specified articles like a mobile phone; on the use of specified services like Internet access; on work and business arrangements; on association or communication with other individuals and allows electronic tagging.

AUSTRALIA Security Legislation Amendment (Terrorism) Act, 2002: It permits increased interception of phones and e-mails, questioning and arrest of people who may indulge in violence, freezing of assets, powers of search and seizure of property and declaring specific groups as terrorist organisations.

Also, identification of an accused through a photograph is not admissible," says Tulsi. For example, in the Mumbai terror attack case, the prosecution would first have to prove that Kasab belonged to Lashkar-e-Toiba, and that it was he and his organisation which orchestrated the attack, causing the death of 163 people.

In fact, in the Mumbai case, even MCOCA has been found to be ineffectual. The Mumbai Police has not been able to apply MCOCA against Kasab since an accused can be booked under the Act only if he or she has been charged of crimes at least twice over the last 10 years and is a member of an organised crime syndicate operating for financial gain. NSA provides only for preventive detention of a person for a year, which can be extended by another year, without trial. Under this, a person cannot be tried since the ground of detention is that there are no witnesses against him. The act can only be used as a temporary measure. MCOCA, however, has its

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Along with tougher new laws, the need of the hour is to modernise the police and implement judicial reforms.

saying to gather other material evidence," rues a security official. Experts believe that any new anti-terror law should have provisions to monitor telephones and e-mails, regulate financial transactions and banking channels, strengthen immigration checks and stop money laundering. They recommend a comprehensive legislation for all of this which would also provide for a centralised intelligence agency. It would also provide for an anti-terrorist force in each state and an investigating agency which can probe terrorism cases nationwide. The new law also seeks to avoid Afzal Guru-like situations where there would be no clemency provision for those convicted of heinous terrorist acts.

The provisions, say experts, have to be backed by a comprehensive witness protection programme. Also needed is an overhaul of the country's criminal justice system. Scenes of terror attacks have to be sealed, and seizures and arrests video-recorded. Mobile forensic units should rush to the spot with the first dispatch of the police, armed with the latest technology. Experts say existing laws like the Unlawful Activities Prevention Act (UAPA), 1967, and the National Security Act (NSA) have proven to be completely ineffective. "A major flaw in the UAPA is that a confessional statement made before the police is not admissible in the court as evidence.

advantages. It allows for 30-day police custody as opposed to 14 days and the police can file a charge-sheet within 180 days as against 90 days under IPC provisions. Under MCOCA, the police can also seek custody of the accused whenever required. MCOCA also allows for confessions to be recorded by a DCP-rank officer and ratified by the court within 24 hours. Under the IPC, a confession can be recorded only before a metropolitan magistrate, where the judicial officer then becomes a witness in the case.

However, on the other side of the divide are senior lawyers like Prashant Bhushan and Kamini Jaiswal—who think that existing provisions of the IPC and the Criminal Procedure Code are sufficient to deal with terror cases. According to them, sections of IPC which deal with attempting to wage war or abetting waging of war against the Government of India are sufficient. "The present laws are good enough. Only the implementation is lacking. Modernise the police, make them independent of political pressures and have speedy trials," says Jaiswal. However, the Mumbai attacks, the confession of a surviving jihadi, and the need to have as many deterrents in place—legal and security related—is now top priority, and competitive politics or human rights may have little say in the matter. ■